

24SMCV03536 24SMCV03536

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-08

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CM%2C07%2F08%2F2026

Source SHA-256: d32005fb3a8ccd2f3e55ab40755c94e2ec226336d27dd1f5c776bd0dd854037b

Case Number: 24SMCV03536 Hearing Date: July 8, 2026 Dept: M

CASE NAME: Blue Hill

Specialty Insurance Company v. Sangphrachanh

CASE NO.: 24SMCV03536

MOTION: Motion

to Quash Service of Summons

HEARING DATE: 7/8/26

Legal

Standard

"A defendant . . . may serve

and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her. . . ." (CCP § 418.10(a).) A court lacks jurisdiction over a party if there has not been proper service of process. (Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 808.) "When a motion to quash is properly brought, the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence." (Aquila, Inc. v. Sup. Ct. (2007) 148 Cal.App.4th 556, 568.)

"[C]ompliance with the

statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]" (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) "[T]he filing of a proof of service creates a rebuttable presumption that the service was proper" but only if it "complies with the statutory requirements regarding such proofs." (Id. at

1441-1442.)

Analysis

Defendant Donald Sengpluachanh

moves to quash Plaintiff Blue Hill Specialty Insurance Company's service of summons and complaint, and vacate the void default judgment.

The proof of service on file states

that Defendant was sub-served at 30456 Olympic St., Castaic, CA 91384.

Documents were left with a John Doe, identified as a co-occupant. Defendant rebuts the facially valid proof of service. Defendant demonstrates that the above address was not his dwelling house, usual place of abode, usual place of business, or usual mailing address at the time of service. (CCP § 415.20.) Defendant explains that he previously lived at that address but moved out in October 2022. (Sengpluachanh Decl., ¶¶ 3-4, Ex. B [driver's license showing other address as residence].)

Plaintiff

does not oppose and therefore fails to support the service.

Accordingly, the motion is GRANTED.